AGREEMENT TO SELL

This Agreement to Sell is made and executed on this 5th day of June, 2018 at Jodhpur.

BETWEEN

Shri Girdhari Lal Sharma, S/o Shri Shyam Lal Sharma, aged about 59 years, R/o 9, Paota, Jodhpur - 342006, PAN: ABGPS4412K

... hereinafter the VENDOR

AND

Smt. Pushpa Devi Rathore, W/o Shri Bhanwar Singh Rathore, aged about 46 years, R/o 118, Sardarpura, Jodhpur - 342003, PAN: AGRPR9918L

... hereinafter the PURCHASER

WHEREAS the Vendor is the absolute owner of the property described in the schedule hereunder;

AND WHEREAS the Vendor has agreed to sell and the Purchaser has agreed to purchase the said property for a total consideration of Rs. 32,00,000/- (Rupees Thirty Two Lakh only);

NOW IT IS HEREBY AGREED AS FOLLOWS:

1. The total sale consideration is Rs. 32,00,000/-, of which the Purchaser has this day paid Rs. 5,00,000/- (Rupees Five Lakh only) as advance and earnest money, receipt whereof the Vendor hereby acknowledges.

2. The balance consideration of Rs. 27,00,000/- shall be paid by the Purchaser at the time of registration of the sale deed.

3. The sale shall be completed and the sale deed executed and registered on or before 05/12/2018. Time is of the essence of this agreement.

4. The Vendor shall, before the date of completion, produce the original title deeds and an encumbrance certificate for thirteen years, and shall obtain all permissions necessary for the sale.

5. The Vendor covenants that the property is free from all encumbrances, attachments and litigation, and that he has a clear and marketable title thereto.

6. If the Purchaser fails to complete the sale within the stipulated period, the earnest money shall stand forfeited. If the Vendor fails to complete the sale, the Purchaser shall be entitled to specific performance of this agreement.

SCHEDULE OF PROPERTY

Residential plot measuring 1,800 square feet bearing Plot No. 44, Khasra No. 218/2, situated at Village Salawas, Tehsil Luni, District Jodhpur, bounded on the East by Plot No. 45, on the West by a 40-foot road, on the North by Plot No. 43 and on the South by open land.

IN WITNESS WHEREOF the parties have set their hands hereto.

VENDOR PURCHASER

WITNESSES:

1. Shri Mool Singh Rathore, R/o Sardarpura, Jodhpur
2. Shri Prem Prakash Soni, R/o Paota, Jodhpur